

Andhra Pradesh (50 Percent Reservation to women in all the Nominated Posts) Act, 2019

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State of Andhra Pradesh - Act

Andhra Pradesh (50 Percent Reservation to women in all the Nominated Posts) Act, 2019

ANDHRA PRADESH

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Andhra Pradesh (50 Percent Reservation to women in all the Nominated Posts) Act, 2019

Act 27 of 2019

Published on 1 January 2019

Commenced on 1 January 2019

[This is the version of this document from 1 January 2019.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh (50 Percent Reservation to women in all the Nominated Posts) Act, 2019

(Act

No. 27 of 2019

)

Last Updated 6th March, 2020

The following Act of the Andhra Pradesh Legislature received the assent of the Governor on the Nth August, 2019 and the said assent is hereby first published on the Nth August, 2019 in the Andhra Pradesh Gazette for general information

:

An Act to provide reservation for women in nominated posts for political up-liftment of women and for matters connected

therewith or incidental thereto.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Seventieth Year of the Republic of India, as follows :

1.

Short title, extent and commencement.

(1)

This Act may be called the Andhra Pradesh (50 Percent Reservation to women in all the Nominated Posts) Act, 2019.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

It shall come into force on such date as the State Government may, by notification in the Andhra Pradesh Gazette, appoint:

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

'Government' means the Government of Andhra Pradesh;

(b)

'Nominated Post' means Office to which an appointment is made or proposed by the Government;

(c)

'Notification' means Notification published in the Andhra Pradesh Gazette and the word notified shall be construed, accordingly;

(d)

'Prescribed' means prescribed by rules made under this Act.

3.

Reservation.

- There shall be 50% Reservation to women in all the nominated posts in all the Corporations/Agencies/Bodies/Boards/Societies/Committees functioning under all the Administrative Departments of the State of Andhra Pradesh.

(i)

There shall be 50% Reservation to women in respect of all the nominated posts of Chairpersons in all the Corporations/Agencies/Bodies/Boards/Societies/Committees, functioning under all the Administrative Departments of the State of Andhra Pradesh;

(ii)

There shall be 50% Reservation to women in respect of all the nominated posts of Directors/Members in all the Corporations/Agencies/Bodies/Boards/Societies/ Committees, functioning under all the Administrative Departments of the State of Andhra Pradesh;

(iii)

There shall be 50% Reservation in the Nominated Posts of Directors/Members in Every Corporation/Agency/Body/Board/Society/Committee, as a Unit;

(iv)

The above mentioned reservation is not applicable to the Bodies and Boards created under The Andhra Pradesh Charitable and Hindu Religious Institutions and Endowments Act, 1987 (Act

No.30 of 1987

) and the Wakf Act, 1995 (Central Act No.43 of 1995);

(v)

For the removal of doubts, it is further clarified that, the present reservation is as a measure of horizontal reservation across all communities and this Act is to be read in conjunction with the Reservation in Nominated posts for Political up-liftment of BCs, SCs, STs and Minorities.

4.

Nodal Department.

- The Women, Children, Disabled and Senior Citizens Department shall be the Nodal Department to monitor the reservation to Women in all the nominated posts. The General Administration Department shall provide the list of such nominated posts in all the Corporations/Agencies/Bodies/Boards/Societies/Committees, functioning under all the Administrative Departments of the State of Andhra Pradesh.

5.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of the Act, the Government may, by order, make such provisions, not inconsistent with the provisions of the Act, as appear to them to be necessary or expedient for removing the difficulty

:

Provided that no such order shall be made after the expiry of two years from the commencement of the Act.

(2)

Every order made under this section shall as soon as, may be, after it is made, laid before each house of the State Legislature.

6.

Act to override the other laws.

- Unless otherwise expressly provided in this Act, the provisions of this Act and of any orders and rules made there under shall have effect, notwithstanding anything inconsistent therewith contained in any other law for the time being in force or any instrument having effect by virtue of such law.

7.

Power to make rules.

(1)

The Government may, by notification, make rules for carrying out all or any of the purposes of this Act.

(2)

Every rule made under this Act shall, immediately after it is made, be laid before the Legislature of the State, if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions and if, before the expiration of the session in which it is so laid or the session immediately following the Legislature agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified, have effect only in such modified form or shall stand annulled as the case may be so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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